

24VECV03829 24VECV03829

County: los-angeles

Division: Civil Law and Motion

Department: U

Hearing date: 2026-07-02

Motion: PLAINTIFFS' MOTION FOR LEAVE TO AMEND THEIR COMPLAINT AND FILE A FIRST AMENDED COMPLAINT

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Case Number: 24VECV03829 Hearing Date: July 2, 2026 Dept: U

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

FOR

THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

CRAIG PFENT, an

individual; and JENNIFER B. PFENT, an individual,

Plaintiffs,

vs.

NOGOL PEDRAM, an individual; CAMERON

MCGARR, an individual; EVOLVE INVESTMENT GROUP INC, a California corporation;

and DOES 1-10, inclusive,

Defendants.

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CASE NO: 24VECV03829

[TENTATIVE] ORDER RE: PLAINTIFFS' MOTION

FOR LEAVE TO AMEND THEIR COMPLAINT AND FILE A FIRST AMENDED COMPLAINT

Dept. U

8:30 a.m.

July 2, 2026

I.

BACKGROUND

This case is a breach

of contract action filed by Plaintiffs Craig Pfent ("Craig") and

Jennifer B. Pfent ("Jennifer") against Defendants Nogol Pedram ("Pedram"),

Cameron McGarr ("McGarr"), and Evolve Investment Group Inc ("Evolve").

On August 12, 2024,

Plaintiffs filed their complaint against Defendants,

seeking/alleging: (1) breach of

contract re: a joint venture agreement; (2) breach of contract re: a loan

agreement; (3) conversion – unauthorized use of funds; (4)

disassociation/expulsion of partner; (5) accounting; (6) breach of fiduciary duty; (7) restitution and imposition of constructive trust; (8) fraud – misrepresentation and false promise; (9) fraud – concealment; (10) negligent misrepresentation; (11) constructive fraud; (12) action for money had and received; (13) unjust enrichment; and (14) injunctive relief.

On September 2, 2025,
Pedram filed an answer to the complaint.

On September 5, 2025,
McGarr and Evolve filed answers to the complaint.

Also on September 5,
2025, Pedram filed an amended answer to the complaint.

On May 4, 2026, the
Court granted Defendants' motions to compel Plaintiffs' initial responses to discovery.

On June 22, 2026,
Plaintiffs filed their motion for leave to amend their complaint.

On June 25, 2026, Judge
Yolanda Orozco granted Plaintiffs' ex parte application for an order advancing the hearing date on Plaintiffs' motion for leave to amend. Judge Orozco set an abbreviated briefing schedule whereby Defendants would file an opposition brief by June 30, 2026, and Plaintiffs would not be permitted to file a reply brief. (See Minute Order dated June 25, 2026.)

On June 30, 2026,
Defendants filed their opposition brief.

II.

LEGAL STANDARD

A complainant may obtain leave from the trial court to amend his pleading beyond the number of amendments allowed under Code of Civil Procedure section 472 (a) by filing a noticed motion.² Cal. Rules of Court, Rule 3.1324.³ The motion must be accompanied by a declaration stating: (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the

amended allegations were discovered; and (4) why the request was not made earlier.” Cal. Rules of Court, Rule 3.1324 (b).

“Any judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading or pretrial conference order.” Cal. Code Civ. Proc. § 576. In the absence of a showing of prejudice from the opposing side, the trial court ordinarily lacks discretion to deny a motion to amend a pleading. Honig v. Financial Corp. of America (1992) 6 Cal.App.4th 960, 965 (Honig).

III.

DISCUSSION

Plaintiffs move for leave to amend their complaint. For the reasons discussed below, the Court grants the motion.

a.

Plaintiffs’ motion satisfies the statutory precepts under California Rules of Court Rule 3.1324.

Plaintiffs’ motion is accompanied by an attorney declaration which explains that the proposed first amended complaint (the “FAC”) includes an additional claim for violation of Penal Code section 496 (c). Plaintiffs contend that such a claim is supported by documents first produced on May 31, 2026. Plaintiffs say this new evidence shows Pedram submitted documents to the Department of Public Health identifying himself as Evolve’s 100% owner without identifying Plaintiffs in any capacity. Counsel says the documents also show misconduct regarding the purchase price of certain assets. (Kim decl., ¶¶ 5-7.)

Plaintiffs’ motion satisfies the statutory precepts under California Rules of Court, Rule 3.1324 because Plaintiffs explain the effect of the proposed amendment, why it is necessary and proper, when the facts giving rise to the amended allegations were discovered, and why the request was not made earlier. See Cal. Rules of Court, Rule 3.1324 (b).

Defendants argue Plaintiffs

have not shown why their motion could not have been filed earlier given that Plaintiffs waited until so close to the trial date (currently set for July 6, 2026) to serve written discovery and to notice Defendants' depositions. While Defendants have a point that Plaintiffs could have probably avoided this issue had they obtained necessary discovery earlier in the case, Plaintiffs still conducted discovery before the discovery cut-off.

As to Defendants' position

that Plaintiffs had sufficient knowledge that Pedram was the sole buyer in the subject stock purchase agreement as early as December 2022, the Court disagrees that the evidence is dispositive. The

Court cannot discern from the parties' submitted evidence whether the documents in Plaintiffs' possession in December 2022 were necessarily sufficient to put Plaintiffs on notice as to a possible civil theft claim. Defendants identify certain documents that were not turned over until May 31, 2026.

Defendants present a colorable argument that their discovery of such documents was the first time they had information sufficient to understand they have a civil theft claim. For purposes of a motion for leave to amend, this is sufficient.

The motion is

appropriately granted absent a showing of prejudice. See Honig, supra, 6 Cal.App.4th at 965.

b.

Defendants' arguments in opposition to the motion are insufficient to show actual prejudice.

Defendants

argue the Court should deny Plaintiffs' motion because Defendants will be substantially prejudiced if the motion is granted. Specifically, Defendants complain that Plaintiffs are attempting to add a new defendant and a new cause of action on the eve of trial. Defendants argue Plaintiffs have engaged in improper gamesmanship to obtain an unfair advantage by surprising Defendants with new claims at the last moment.

The

Court is sympathetic to Defendants' position, as there is a substantial amount

of truth to their complaints regarding the way Plaintiffs have litigated this case. Had Plaintiffs exercised their discovery rights earlier in the process, Defendants would not be in the position of needing to prepare a defense to an additional claim after already having started trial preparation.

Even

so, the public policy favoring liberally allowing plaintiffs to amend their pleadings to state a claim where one exists weighs in favor of granting the motion. If Plaintiffs have discovered new facts which show civil theft, Plaintiffs should have an opportunity to allege such a claim. The mere fact that Defendants will need to continue litigating this case and conduct additional trial preparation is insufficient to show actual prejudice.

Because Defendants have not shown that they will suffer actual prejudice if the Court grants Plaintiffs' motion, the motion is granted. See Honig, supra, 6 Cal.App.4th at p. 965; see also Pacific Construction, Inc. v. City of Sunnyvale (2007) 155 Cal.App.4th 525, 545 (even on eve of trial, case law directs trial court to allow parties to amend pleadings so long as there is no showing of actual prejudice).

c.

The parties are encouraged to stipulate to a trial continuance.

The

Court acknowledges that granting Plaintiffs' motion will mean their July 6 trial date will need to be continued. The parties are encouraged to meet and confer regarding a new trial date and stipulate to continue the trial to an agreed upon trial date.

IV.

CONCLUSION

Plaintiffs Craig

Pfent and Jennifer B. Pfent's motion for leave to amend their Complaint and file a First Amended Complaint is GRANTED.

Plaintiffs Craig

Pfent and Jennifer B. Pfent are ORDERED to e-file their First Amended Complaint, as a standalone, e-filed document in the Court's electronic filing system within five (5) calendar days of the motion's hearing.

Plaintiffs Craig

Pfent and Jennifer B. Pfent are ORDERED to give notice.

DATED: July 2, 2026

Valerie

Salkin

Judge of the
Superior Court